DEPARTMENT OF HEALTH & HUMAN SERVICES

INDIAN HEALTH SERVICE – PHOENIX INDIAN MEDICAL CENTER

4212 N. 16th Street – Phoenix, AZ 85016

FORMAL INDIVIDUAL COMPLAINT FOR EMPLOYMENT DISCRIMINATION

(EEOC Form 5 – Retaliation)

1. COMPLAINANT INFORMATION

Item	Response
Name	Kevin D. Turnage
Home Address	1003 E. Pinto Ct., Gilbert, AZ 85296
Home Phone	901-220-8664
Work Phone	602-567-3207
E-mail	kdturnage@protonmail.com

2. AGENCY & DUTY STATION

Item	Response
Agency	Indian Health Service (IHS)
Duty Station	Phoenix Indian Medical Center (PIMC)
Address	4212 N. 16th Street, Phoenix, AZ 85016

3. PROTECTED ACTIVITY (Whistleblower Protection Act, 5 U.S.C. § 2302(b)(8))

Federal case filed: CV-25-03367-PHX-SMB

Date filed: September 15, 2025

1. **January 13, 2023** – Submitted a timely request for Family and Medical Leave (FMLA).

2. **April 13, 2023** – Filed an EEOC charge alleging discrimination, hostile work environment, and retaliation.

3. **Multiple disclosures (2022-2024)** – Sent protected disclosures to the Office of Special Counsel, HHS Office of Inspector General, Joint Commission, CMS Region 9, and Members of Congress concerning waste, fraud, abuse, and patient-safety concerns.

All disclosures were made in good-faith belief that the information revealed wrongdoing, satisfying the WPA protected-activity requirement.

4. RETALIATORY ACTIONS (2024 & 2025 ONLY)

Date	Retaliatory Action	One-Sentence Synopsis
March 1, 2024	Email from Clinton Pope accusing Turnage of using AI-generated communications	Created a hostile work environment and was a retaliatory response to Turnage's protected disclosures.
August 30, 2024	Email from Endreya McCabe directing Turnage to cease certain policy activities	Effectively limited Turnage's authority and was a retaliatory measure following his disclosures.

Date	Retaliatory Action	One-Sentence Synopsis
July 11, 2025	Verbal conversion of Administrative Leave to 30-day Investigative Leave	No written notice or required threat/legitimate-interest analysis; violates **5 U.S.C. § 7513(b)**.
July 18, 2025 (10:38 a.m.)	Demand to return all government-issued property by 12:00 p.m. the same day	<90 minutes' notice, no justification; issued by Dr. Endreya McCabe, Ms. Birdshead, and Ms. Rossell.
July 18, 2025 (12:06 p.m.)	Confirmation of the same property-return demand	Reiterated the unreasonable deadline.
June 27 – July 11, 2025	Additional administrative-leave extensions and "Notice Leave" extensions	All issued **without** written determinations, pre-clearance, or due-process notice.
June 27 – July 11, 2025	Continued denial of access to agency computer systems, email, and physical facilities	Maintained a constructive suspension.

These actions total roughly **45 workdays** of non-duty paid status in 2025, contributing to a cumulative **108 federal workdays** of non-duty status (including earlier periods). This exceeds the **14-day threshold** that creates a **constructive suspension** under **5 U.S.C. § 7512(2)** and **5 C.F.R. § 752.404**.

Total leave: From **June 27, 2025** through **December 30, 2025** (today) Turnage has been on leave for **187 days**.

5. LEGAL BASIS FOR CLAIM

1. **Title VII, 42 U.S.C. § 2000e-3(a)** – retaliation for engaging in protected EEO activity.

2. **Whistleblower Protection Act, 5 U.S.C. § 2302(b)(8)-(9)** – retaliation for making protected disclosures.

3. **5 U.S.C. § 7513(b)** – failure to provide the required written threat/legitimate-interest analysis before imposing investigative leave.

4. **5 U.S.C. § 7512(2)** – constructive suspension because of prolonged non-duty status.

5. **5 U.S.C. § 2302(b)(9)** – retaliation for refusing to comply with an unlawful order (the unreasonable property-return demand).

Each adverse action listed above was taken **because** the protected activity in Section 3 occurred; the close temporal proximity and agency statements that the actions were "retributive" establish causation.

6. REQUESTED RELIEF

- **Reinstatement** to former position as Nurse Consultant & Policy & Procedures Officer at PIMC, with full seniority and all accrued benefits.

- **Front Pay** sufficient to compensate for future loss of earnings and career advancement opportunities.

- **Compensatory damages** for emotional distress, humiliation, mental anguish, and loss of enjoyment of life.

- **Punitive damages** where authorized by law (Title VII, WPA).

- **Injunctive relief** enjoining the Agency from any further retaliatory actions, from restricting access to facilities, and from interfering with the Complainant's statutory rights.

- **Reasonable attorney's fees and costs** pursuant to 28 U.S.C. §§ 2412 and 2413.

- **Pre- and post-judgment interest** as allowed by law.

7. SIGNATURE

Kevin D. Turnage

Date: **December 30, 2025**

I certify under penalty of perjury that the foregoing is true and correct to the best of my knowledge, information, and belief.

CERTIFICATE OF SERVICE

I hereby certify that on **December 31, 2025** I caused this Formal Individual Complaint to be served by **Certified Mail, Return Receipt Requested** in accordance with EEOC regulations to the following parties:

- **Indian Health Service – EEO Office**, 5600 Fishers Lane, Mailstop 08E61, Rockville, MD 20857 IHSDMEEOStaff@ihs.gov

- **Office of Special Counsel**, 1730 M St. NW, Suite 200, Washington, DC 20036

- **HHS Office of Inspector General**, 1300 I St. NW, Washington, DC 20005

End of Complaint